

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #04	CCRB Case #: 201802013	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 03/14/2018 1:25 PM	Location of Incident: Southbound FDR Drive and Old Slip	18 Mo. SOL 9/14/2019	Precinct: 01
Date/Time CV Reported Wed, 03/14/2018 2:57 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/14/2018 2:57 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jonathan Itin	28857	953990	HWY 01

Officer(s)	Allegation	Investigator Recommendation
A . POM Jonathan Itin	Abuse: Police Officer Jonathan Itin threatened to seize § 87(2)(b) s property.	A . Unsubstantiated

Case Summary

On March 14, 2018, § 87(2)(b) contacted the CCRB and filed this complaint via telephone.

On March 14, 2018, at 1:25 p.m., in the vicinity of FDR Drive and Old Slip in Manhattan, Police Officer Jonathan Itin of Highway Unit 1 threatened to seize § 87(2)(b)'s property (**Allegation A: Abuse of Authority, unsubstantiated**).

§ 87(2)(b) received a summons as a result of this incident.

Dash cam footage was obtained for this incident, but it did not depict the allegation, as there was a malfunction of the audio component (BR 09-10).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jonathan Itin threatened to seize § 87(2)(b)'s property.

The following facts are undisputed.

On March 14, 2018, at approximately 1:25 p.m., § 87(2)(b) was traveling southbound on FDR Drive in Manhattan, when PO Itin signaled with his hand for § 87(2)(b) to pull over. § 87(2)(b) complied. When PO Itin approached § 87(2)(b)'s vehicle, § 87(2)(b) disputed the speed PO Itin said § 87(2)(b) was traveling. A discussion ensued regarding the possibility of § 87(2)(b)'s speedometer being broken. § 87(2)(b)'s vehicle was not towed and he was able to leave the scene after receiving a summons for speeding (BR 08).

§ 87(2)(g)

According to § 87(2)(b) (BR 01), when § 87(2)(b) pulled over, PO Itin approached and asked § 87(2)(b) if he knew how fast he was going. § 87(2)(b) informed PO Itin that his speedometer gauged his speed as 42 miles per hour. PO Itin told § 87(2)(b) that he was traveling at 62 miles per hour in a 30 miles per hour zone. PO Itin said, "If your speedometer is broken, I should have your vehicle towed. I'm going to have your car towed." § 87(2)(b) made no comment about his speedometer being broken, and further informed PO Itin that his car had just passed an inspection earlier that day. PO Itin said, "You know what? I'm going to call a tow truck and take your car."

According to PO Itin (BR 02), his lidar gun, a laser gun that registers the rate of speed of a vehicle and displays the speed on the gun after it is pointed toward the front area of a vehicle, registered § 87(2)(b)'s rate of speed as 62 miles per hour. PO Itin ensures that the lidar gun is working properly at the beginning and end of every tour.

When PO Itin approached § 87(2)(b)'s vehicle, § 87(2)(b) told PO Itin that he was traveling 40 miles per hour, which was not the speed the lidar gun registered. As there was a 22 miles per hour difference between the speed registered on PO Itin's lidar gun and the speed § 87(2)(b) said was on his speedometer, PO Itin explained to § 87(2)(b) that if his speedometer was broken and was unsafe for highway use, his car could be towed for safety reasons. PO Itin never told § 87(2)(b) that he was going to call a tow truck or that he was going to have his car towed.

Every motor vehicle registered in New York State must be equipped with a speedometer device which is capable of measuring the speed of a vehicle and displaying the same in miles per hour. Vehicle and Traffic Law § 375 (42) (BR 03).

A uniformed member of service can authorize the removal of a vehicle which cannot be safely driven if the owner/operator is incapacitated, is not present, or refuses to authorize the tow. Patrol Guide Procedure 217-09 (BR 04).

§ 87(2)(g)

As such, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one CCRB complaint and has been named as a victim in one allegation (BR 05).
 - § 87(2)(b)
- PO Itin has been a member of service for five years and has been a subject in one CCRB complaint and one allegation, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of March 28, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to this complaint (BR 06).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date